Maybe your virtue blanks your choice

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Abstract: Asymmetry Thesis proposed by Susan Wolf says, that if one agent is blameworthy, then he should have the ability to do otherwise, while if he is praiseworthy, then he is not required to have the ability to do otherwise (Wolf 1990, 79–81). In this paper, I try to advance a new proposal in defense of Asymmetry Thesis from a perspective intersecting our discussion of moral responsibility and our discussion of virtue ethics. That is, I propose to argue that a promising defense of Asymmetry Thesis may appeal to the silencing feature of moral virtues (McDowell, 1979, 1998), which proves supportive to both the initial thesis and its defending arguments (e.g., Wolf 1990). In particular, I will review Wolf's defending argument (sec. 3), demonstrate an account on the silencing feature of moral virtues, therefrom advance my argument in support of Asymmetry Thesis (sec. 4), and consider several potential objections (sec. 5).

Keywords: Blameworthiness; Praiseworthiness; Asymmetry; Virtue; Silencing Feature

1 Introduction

Consider several common cases in philosophical debates:

Amy 1 voluntarily pulled the trigger and shot a victim;

Amy 2 is coerced to push the button to injected a victim some lethal medicine;

Bob 1 could walk away or dive into water to save a drowning kid, and he saved the drowning kid; and

Bob 2, a highly moral person, dived into water to save a drowning kid, for Bob 2 not to save the kid is never an option.

We may first assume, that blameworthiness is the property such that an agent is apt to be held responsible for morally bad actions. Praiseworthiness, correspondingly, is the property such that an agent is apt to be held responsible for morally good actions. And notions of 'morally bad' and 'morally good' are construed under common sense. Intuitive conclusions of given cases are, Amy 2 is not blameworthy while Amy 1 is blameworthy, and both Bob 1 and Bob 2 are praiseworthy. Something is worth noticing.

Grant 'avoidability' to be the ability to do otherwise, where 'ability' is understood in a pretheoretical sense[1], we find: Amy 1 and Bob 1 have avoidability, while Amy 2 and Bob 2 do not have avoidability. Nonetheless, Amy 2 is NOT blameworthy but Bob 2 IS praiseworthy. Call it Asymmetry Thesis. The usual formulation is, "blameworthiness requires avoidability while praiseworthiness does not" (Wolf 1990, 79–81). Asymmetry Thesis is widely disputed since put forward by Susan Wolf (ibid.).

[1] I acknowledge that the disagreement concerning how the notion of ability should be construed is fundamental to the debate on free will. Though particular conceptions will be suggested later (e.g., the leeway model of freedom, or Chisolm's account, etc.), such preoccupation appears to be unnecessary at this phase.

In what follows, I propose to argue that a promising defense of Asymmetry Thesis may appeal to the silencing feature of moral virtues (McDowell, 1979, 1998), which proves supportive to both the initial thesis and its defending arguments (e.g., Wolf 1990). In particular, I will review Wolf's defending argument (sec. 3), demonstrate an account on the silencing feature of moral virtues, therefrom advance my argument in support of Asymmetry Thesis (sec. 4), and consider several potential objections (sec. 5). Eventually, I conclude with my prospect on the general project concerning avoidability, blameworthiness, praiseworthiness and virtues.

2 Wolf's Argument

In section 2, I unpack Wolf's argument in support of her Asymmetry Thesis. It is not difficult to see, that any proposal in support of Asymmetry Thesis should (at least) plausibly explain the absence of avoidability in cases of praiseworthiness.

Wolf's initial argument (Wolf 1990, 80) is primarily motivated by intuition. Take Catherine's Case for instance—Catherine, a good-hearted and highly moral person, cannot but decide to save the drowning child at the stake of ruining her new designer trousers (op. cit., 58). This scenario illustrates such an intuition that, in a given context, a praiseworthy agent could not have done otherwise. Such an intuition seems plausible, yet not strong enough. Wolf further grounds her intuition in psychological determination[2] (op. cit., 79), which can be understood in three steps. Step 1 is

[2] I find this name potentially misleading. I clarify, the so-called "determination" here only means that one person is profoundly influenced by his/her developed characters, or as Wolf name it, 'true self.' It does not indicate anything like one person being controlled/manipulated by his/her psychology or things alike. People may find the misled understanding incredible, which I concur, but it is an irresponsible/uncharitable interpretation of Wolf.

about how one person's (moral) characters, so-called 'true self' (op. cit., 58), is formed. Roughly, one person's upbringing (e.g., raised by decent parents or criminals), environment (e.g., living in civilised community or corrupted districts) and other such like factor profoundly influence his character (e.g., being decent, being brave, being vicious, being evil, etc.). Step 2 is about one capacity of agency, viz. reason-responsiveness in moral deliberation. Briefly, when confronted with decisions, rational people decide by virtue of reasons—that is, they first detect reasons, then they act in response to their reasons. For example, let the decision be "whether or not help a granny on the street," one rational person may come up with reasons like "the granny needs a hand, and I should help people in need," "what happens to other people on the street has nothing to do with me," etc. By virtue of those reasons, he decides to help/not to help as a response. Finally, step 3 is about why people with morally good characters cannot do otherwise in cases of praiseworthiness. According to Wolf, the argument goes like this. Morally good people develop specific characters/true selves, given their upbringing, environment or relevant factors. In the presence of their specific characters/true selves, morally good people do not respond to bad reasons (e.g., "I let the kid drowning and see him suffering for pleasure"), either because they cannot detect bad reasons or they do not treat them as grounds for reaction. Therefore, as morally good people do good deeds, they cannot do otherwise (or in the given context, morally non-good action). Call this Wolf's Argument. Many people find Wolf's Argument unpreferable.

One well-known accusation of Wolf's Argument is proposed by Gary Watson (1996), which I will consider later as objection 1 in section 4. Notwithstanding this objection, one vital concern is, even if grant it is true that morally good people cannot respond to bad reasons, what grounds such

a claim? The follow-up question is to ask, that given morally bad/neutral people can (assumably) respond to both good and bad reasons, why can morally good people respond to only good reasons? That is to ask, that what makes morally good people unable to respond to bad reasons? Wolf's Argument can hardly answer those questions. Thus, we need some further explanations. I tentatively argue in section 3 that a plausible explanation is, as for morally good people, their ability to respond to bad reasons is silenced by their virtues.

3 Avoidability Silenced by Virtue

In sections 3, I argue for the position that the avoidability of virtuous agents is ruled out by the silencing feature of moral virtues (McDowell 1979, 335).

Several motivations are in order. *First*, there is an apparent connection between praiseworthiness and virtue. That being said, we always hold an agent praiseworthy in virtue of a certain virtue he has, or at least, a certain virtue he instantiates in a certain action. *Second*, there are indeed cases where a virtuous agent actually could not have done otherwise, e.g., Catherine's Case (Wolf 1990, 58), Martin Luther's Case (Dennett 1984, Ch. 6), etc. *Third*, an enquiry into virtues may provide an interesting angle to debates concerning Asymmetry Thesis, or even the industry intersecting moral responsibility and virtue ethics. Since virtue ethics appears to get popular among philosophers (Bourget and Chalmers 2021), investigations as such gradually become significant.

Now I put my account on the table. Suppose that all agents in our discussion are rational,

reasonable and highly moral, and suppose that one such agent, Alex, acts a morally good deed (and is meanwhile virtuous). And grant that moral virtues are properties like 'being honest,' 'being brave,' 'be decent,' etc[3]. Intuitively, those morally positive properties are sometimes instantiated in agents of morally good actions. An observation is: having a virtue not only involves that Alex gives certain considerations greater weight than others in his deliberation, but also that he counts certain considerations 'for nought,' so that they do not exercise any 'pull' on him at all. If he is truly virtuous, certain considerations which would otherwise be considered as speaking against his action are taken to be completely irrelevant and don't even show up in his practical deliberation on the 'Con' side of reasons which must be outweighed (McDowell 1979, 334–5). That is, for Alex, given that situation, options to act non-virtuously are silenced. This silencing feature of moral virtues, according to McDowell (1979), can be further explained in two ways (op. cit., 335). First, a (truly) virtuous agent will not be tempted to act in a way which is incompatible with virtue ('motivational silencing'). Second, a (truly) virtuous agent will not believe that he has any reason to act in a way which is incompatible with virtue ('rational silencing')[4].

Before we move into objections considered in sec. 4, one problem of such attempt is, unless a further commitment is made, silenced options are not necessarily equivalent to silenced avoidability. But I argue it is not too hard an obstacle to overcome. Granted McDowell's conclusion that, in a given case, other options of a truly virtuous agent are blocked out by his virtue(s), I sketchily offer

[3] Here I do not have to engage myself to debates concerning moral realism or irrealism. What I need is that the common sense that, in our moral practice, some people are virtuous/vicious. As for if virtue is fundamental existence in our world, or what is the nature of moral virtue or question alike, my account is compatible with various theses.

[4] Besides, a stronger Aristotelean approach, as is later adopted by McDowell (1998, 17–18), suggests that this kind of 'silencing' is a requirement of virtues per se, because of the self-sufficiency of a virtuous life. I introduce this point here for the completeness of McDowell's Thesis, which my later discussion will not directly involve.

three directions to conduct silenced avoidability from silenced options. First, a leeway model of freedom (e.g., Dennett 1984, Wolf 1990, etc.) could be posed. In given cases, granted McDowell's conclusion and a claim that 'to do otherwise' is to 'choose from different paths to take' (analogously), avoidability is silenced. Second, a Chisolm's reading of ability (Chisolm 1964) could be posed. In given cases, granted McDowell's conclusion and a claim that an agent is unable to act a certain action if he cannot choose it, avoidability is silenced. Third, a thoroughly Aristotelean position (cf. Hursthouse 2006) could be posed. In given cases, granted McDowell's conclusion and a claim that being *x*-ous (where *x* is a virtue like braveness, honesty, etc.) is essential to a person's nature, avoidability, which would alter one's nature if he had it, is silenced.

4 Objections and Replies

In section 4, several potential objections are in order. My focal points are, at this phase, objections from a broad picture of relevant debates, so disagreements concerning specified details will not be covered.

Objection 1 (a.k.a. Watson's Accusation): Some preparations are needed before I lay out the objection. Attributability, as I understand, is the moral responsibility such that evaluative terms like 'commendable,' 'condemnable,' etc. are appropriate to be attributed/ascribed to an agent. Accountability, in contrast, is the moral responsibility such that an agent is appropriate for a certain treatment, e.g., our applauses, our hateful stares, and so on (Watson 1996, 228–9). Adapted from

Watson[5], one objection goes like this. Were Asymmetry Thesis true, praiseworthiness should be construed to the extent of attributability, and blameworthiness to the extent of accountability (op. cit. 242). But this shifting is accusably arbitrary, or even ad hoc. Therefore, Asymmetry Thesis is problematic.

Reply: Nice try. Wolf's Argument may rest upon such a shift, but my account is arguably immune. I argue, to the extent of accountability, the following proposition is true—blameworthiness requires avoidability while praiseworthiness does not. Before I proceed, I introduce the notion of fairness (Watson 1996, 235). If we account somebody for his misbehavior, it is fair only if he has control of his misbehavior. And as is clarified in Intro., I roughly take control condition to be avoidability here in this paper[6]. Thus, it follows that we account somebody for his misbehavior, it is fair only if he has avoidability. That is, blameworthiness to the extent of accountability requires avoidability. Given my account about how avoidability in cases of praiseworthiness is silenced out, it follows that praiseworthiness to the extent of accountability does not require avoidability. Summing my point up, to the extent of accountability, Asymmetry Thesis is true, without the shifting accused by Watson (1996).

Objection 2: One class of objections can be phrased in the following way. An apparent fact is, one specific moral virtue can be instantiated in a group of actions. For instance, saving a drowning kid, saving a falling kid, saving a suffocating kid, etc. can all be considered as instantiations of the

[5] Watson in fact (Watson 1996, 241–2) tries to improve Wolf's Argument at the beginning. But he finds that the argument turns out problematic, even for a sympathizer like himself. I assume that is why Watson's attitude becomes obscure. Here I reconstruct his argument to an objection, and, honestly speaking, this objection is good.
[6] From here my readers may have a haunch about why I do not argue that, to the extent of attributability, Asymmetry Thesis is true. Since the attributability sense of moral responsibility undermines the control condition of the subject, I believe it is not clear whether the notion of fairness applied here, at least I doubt the claim it applies unless further argumentative work is done. But it is the subject of another paper.

virtue 'being brave.' It seems that a truly brave agent, e.g., Catherine (Wolf 1990, 58), still has the ability to save a falling kid, apart from saving a drowning kid (what she actually does). However, according to my proposal, this option is dubiously blocked out.

Reply: Yes and no. I agree that, apart from saving a drowning kid, Catherine can still save a falling kid, etc. But I argue this fact is not a counterexample of my account. I primarily distinguish type action and token action. To make thing easier, consider: "Jake saves a kid," "Jake helps a granny," "Jake assistants a police officer," etc. Call these type actions[7]. Correspondingly, consider: "Jakes swims to save the kid at the speed 1km/s," "Jakes swims to save the kid at the speed 1.2km/s," "Jakes swims to save the kid at the speed 1.6km/s," etc. Call those token actions. I argue, what moral virtues silence in each instance is not token actions but type actions. Now, recall the case of being brave, what is silenced are options to act non-brave type actions, e.g., being cowardly. As for which token of brave action Catherine actually choose to act, it is irrelevant to the dispute and therefore open for possibilities. A more vigorous position is to assert that, for an agent, to truly have avoidability is to have the ability to choose one exempting type action from other type actions (Steward 2009, 605–7). I sympathize that, in cases concerning avoidability, type-talks are more appropriate than token-talks. Nonetheless, since my clarification is sufficient for response, it remains my readers' liberty to endorse Steward's account or not.

Objection 3: Another class of objections concerns issues of vices. Given my lines of reasoning that virtues silence avoidability in cases of praiseworthiness, correspondingly, one could argue that avoidability in cases of blameworthiness is silenced by vices. If so, Asymmetry Thesis is still

[7] Some people may concern how to differentiate a type action from a mere general description. I think it is a good question. But space limited, I will not pursue the question here.

false.

Reply: Fair enough. But I argue vices do not have the corresponding silencing feature. My reply returns to an Aristotelean schema, which primarily admits presuppositions like human's tendency towards the good, vices as privations of virtues, etc. (See, for instance, Hursthouse 1999, Ch. 8). In cases of blameworthiness, the option to act virtuously is open to the agent, because he is supposed to have that virtue (via doing otherwise). Thus, my proposal is at least valid, consistent and defendable, though I acknowledge that it takes price to accept those Aristotelean claims.

Objection 4: According to your account, a truly virtuous agent, when conducting a praiseworthy action, cannot do otherwise. However, what if he/she becomes sloppy for once, that is, he/she ignores one good deed he/she could have done, or retreat from acting so?

Reply: Granted. I agree even if a great virtuous agent could be sloppy for once. However, I argue that this situation does not threat my account. Two possible cases to demonstrate the sloppiness of virtuous agents are in order. Case 1, a cornel is regarded as brave. Given my account, he is supposed to fight bravely in battles. But one day when a battle is approaching, he steps back for a fear of death strikes him. Two possible responses to Case 1 are available. Hard-line response, the cornel is not truly virtuous (or to be specific, brave). This response *per se* is not problematic, but its implication may be found hard to accept—that is, to be truly virtuous is too perfect, without slightest stains. People (including I myself) may find it too demanding. Soft-line response, the cornel is, though blameless and maybe even truly virtuous, not praiseworthy. Or to go one more step back, it is not clear whether the cornel is praiseworthy or not. After all, it is a controversial case. Above is Case 1, it poses no substantial threat to my account. Case 2, a cornel is regarded as brave. Given

my account, he is supposed to fight bravely in battles. But one day when a battle is approaching, he hesitates for a longtime and eventually joins the battle and sacrifices as a hero. It seems in Case 2 he has avoidability. But it still does not threat my account. Recall Asymmetry Thesis says, praiseworthiness does not require avoidability. This claim is consistent with the fact that, in some cases of praiseworthiness, the praiseworthy agent can do otherwise. What's more, some people may argue that it is exactly because of another option's presence that makes the agent truly praiseworthy. Above is Case 2, it is not a threat to my account anyway.

Objection 5: Your account concentrates on virtuous agents. However, actual cases are not always so cut and dry. A normal person, who is not essentially brave, still always can and will act bravely, finally earning praise. But those cases, he/she in fact can do otherwise—that is, he/she can simply refrain acting such like.

Reply: Good point. In response, I distinguish virtuous agents and virtuous actions. To illustrate, consider: Archilles the fearless hero, Lancelot the loyal knight, Saint Teressa the kind-hearted, etc. Call them virtuous agents. Virtuous agents satisfy the strictest requirements (including the moral stainlessness), though they are considerably rare. In contrast, consider: saving a drowning kid, helping a granny in need, fighting bravely in battle, etc. Call them virtuous actions. Notice that virtuous actions can be operated by non-virtuous agents, e.g., Adolf Hitler can also save a frowning kid. Now back to the objection, the normal person, who is not essentially brave and in fact can do otherwise, still always can and will act bravely, finally earning praise. My response is, though my original account concentrates on virtuous agents (e.g., Catherine), I may loosen my condition to virtuous actions here. Again, I put my account of virtuous action on the table: an act is right iff

it is what a virtuous agent would characteristically (i.e., acting in character) do in the circumstances (Hursthouse 1996, 22)[8]. Thus, even if a non-virtuous agent conducts a virtuous action and earns praise, his/her avoidability in a certain action is still silenced by the virtue instantiated[9].

5 Concluding Remarks

One last class of concerns I have in mind is about the theoretical attraction of my proposal. Though my proposal, compared to Wolf's Argument, proves advantageous, there are still other competing approaches in defense of Asymmetry Thesis. All proposals considered, is my proposal still attractive? My answer is positive.

With respect to the absence of avoidability in cases of praiseworthiness, the general explanatory strategy—or defending strategy, to the extent of Asymmetry Thesis—appeals to the operation of moral norms (Mayr 2019, 114; Nelkin 2013, Ch. 5), e.g., "do the good thing," "if not can, then not ought," etc. The core idea is, for most times, the function of moral norms is to rule out certain options and considerations from the start, eliminating them from reasons upon which our choice can be based (Mayr 2019, 117). To some sense, it shares the spirit of my proposal, however, it is confronted with a follow-up question. That is, granted this argument works, on what ground does moral norms function this way instead of others? One alternative is to plainly assert the bruteness

[8] This proposal may face the challenge concerning right yet not virtuous actions. Space limited, I cannot consider this follow-up objection here. For virtue ethicists' defense, see Nieswandt and Hlobil 2018.

[9] Some people may have worries about this claim being inconsistent with my second reply—that virtue silences type actions. However, virtuous action *per se* are tokens—given specific circumstances, one same action may be virtuous if performed by A at time B in place C, but not virtuous if performed by D at time E in place F—each case should be analyzed separately. Thus, both Objection 2 and my reply do not apply to virtuous actions. Those kindly worried people may therefore rest assured.

of such fact. Compared to my proposal, this position is, though adoptable, at least no easier to defend. Other alternatives, in contrast, share the burden of further explanation[10]. It looks safe to say that my proposal (at least) stands a fighting chance—even a considerable fat chance.

To sum up, I diagnose two defending arguments of Asymmetry Thesis, introduce a new resource to the dispute and propose an argument citing the silencing feature of moral virtues. My proposal, though not non-controversially, makes it explicit that behind cases supporting Asymmetry Thesis there is probably an underpinned notion concerning the nature of moral virtues. Hopefully for friends of Asymmetry Thesis, my defense should at least prove inspiring, even if not ultimate.

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[10] What's more, one explanatory approach is probably that the way a moral norm function is constrained by requirements of moral factors, e.g., moral virtues. If so, then my proposal, also the truth-maker of the explanatory approach above, would prove more profound.

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